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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

**FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,**

v.

CSAA Insurance Exchange; and Does 1 through 50,
inclusive;

DEFENDANTS

Case No.: CGC-25-631802

**NOTICE OF LODGING SUPPLEMENTAL
AUTHORITY (CODE CIV. PROC., §§ 425.16,
425.17)**

(Cal. Rules of Court, rule 3.1306(c); lodge only; not an amendment
to any pleading)

**Cross-noticed for pending defense hearings (this case, Dept.
302):**

#	Motion	Date / dept / judge
(1)	MFL / leave (SAC)	Apr. 30, 2026
(2)	Anti-SLAPP (Code Civ. Proc., § 425.16)	May 13, 2026, 9:30 a.m. ; Dept. 302; Hon. Joseph M. Quinn
(3)	Strike (Code Civ. Proc., § 436)	May 19, 2026 ; Dept. 302; Hon. Joseph M. Quinn
(4)	Demurrer	Hrng. date [TBD] (reserved)

Complaint filed: Dec. 23, 2025

FAC filed: Feb. 25, 2026

NOTICE OF LODGING

TO ALL PARTIES AND THEIR ATTORNEYS OF RECORD:

PLEASE TAKE NOTICE that Plaintiff Franciscus Dylan Rosario hereby **lodges supplemental authority** for the Court's consideration at **each** of the pending defense-motion hearings cross-listed on the caption page: MFL/SAC (Apr. 30, 2026); special motion to strike (May 13, 2026, Dept. 302); Code Civ. Proc., § 436 motion to strike (May 19, 2026, Dept. 302); and demurrer (date reserved). The authorities below bear on whether Code Civ. Proc., § 425.17(c) and related threshold doctrines are **common spine** issues across those motions.

I. Authorities Lodged

1. *Simpson Strong-Tie Co. v. Gore* (2010) 49 Cal.4th 12 (framework for Code Civ. Proc., § 425.17(c); categorical bar when elements satisfied).
2. *JAMS, Inc. v. Superior Court* (2016) 1 Cal.App.5th 984 (Code Civ. Proc., § 425.17(c) applied to commercial actor making representations about its own services).
3. *Stewart v. Rolling Stone LLC* (2010) 181 Cal.App.4th 664 (Code Civ. Proc., § 425.17(c) applied to statements integrated with commercial output).
4. *Flatley v. Mauro* (2006) 39 Cal.4th 299 (illegality as a matter of law removes assertedly protected conduct from Code Civ. Proc., § 425.16 gateway).
5. *Lefebvre v. Lefebvre* (2011) 199 Cal.App.4th 696 (reaffirming *Flatley* on uncontroverted record).
6. *Club Members for an Honest Election v. Sierra Club* (2008) 45 Cal.4th 309 (threshold construction of Code Civ. Proc., § 425.17 exemptions before Code Civ. Proc., § 425.16).
7. *Action Apartment Ass'n v. City of Santa Monica* (2007) 41 Cal.4th 1232 (Code Civ. Proc., § 47(b) coextensive with Code Civ. Proc., § 425.16(e) for certain deceit predicates).
8. *Rusheen v. Cohen* (2006) 37 Cal.4th 1048 (non-communicative conduct outside Code Civ. Proc., § 425.16(e)).
9. *City of Cotati v. Cashman* (2002) 29 Cal.4th 69 (demurrer pleading standards; rhetorical merits labels).
10. *Park v. Board of Trustees* (2017) 2 Cal.5th 1057; *Baral v. Schnitt* (2016) 1 Cal.5th 376 (anti-

1 SLAPP step separation).

2 11. *Egan v. Mutual of Omaha Ins. Co.* (1979) 24 Cal.3d 809; *Wilson v. 21st Century Ins. Co.*
3 (2007) 42 Cal.4th 713 (insurer investigation duties).

4 12. *Royal Globe Ins. Co. v. Superior Court* (1979) 23 Cal.3d 880; *Moradi-Shalal v. Fireman's*
5 *Fund Ins. Companies* (1988) 46 Cal.3d 287; *Zhang v. Superior Court* (2013) 57 Cal.4th 364
6 (third-party claimant regulatory duties; UCL predicate).

7 13. Plaintiff's concurrently lodged Omnibus Supplemental Memorandum of Black-Letter Con-
8 tradictions (systematizing defense positions against cited authorities).

9 **II. Common Defense Spine Across All Four Motions**

10 In CGC-25-631802, defendants' denial-letter and claim-handling posture parallels the commercial-
11 speech and privilege sequencing issues Plaintiff has briefed in the companion action. The same
12 Code Civ. Proc., § 425.17(c) framework therefore applies across the Apr. 30, May 13, May 19,
13 and demurrer calendars without amending any operative pleading here.

14 **III. Why Code Civ. Proc., § 425.17(c) Reaches All Four Motions**

15 **Threshold first.** Under *Club Members*, Code Civ. Proc., § 425.17 issues are structurally prior
16 where raised. **Code Civ. Proc., § 47(b) coextensive strand.** Under *Action Apartment*, certain de-
17 ceit channels align with the Code Civ. Proc., § 425.16(e) inquiry. **Code Civ. Proc., § 436 frame.**
18 Where defendants import anti-SLAPP-style immunity rhetoric into a Code Civ. Proc., § 436 at-
19 tack, *PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1682–83 supplies a strike-specific
20 guardrail for the May 19, 2026 hearing. **Amendment / Code Civ. Proc., § 425.16 sequencing.**
21 For the Apr. 30, 2026 MFL/SAC hearing, Plaintiff addresses over-read *Simmons*-style futility ar-
22 guments through *JKC3H8 v. Colton* (2013) 221 Cal.App.4th 468 and *Nguyen-Lam v. Cao* (2009)
23 171 Cal.App.4th 871.

24 **IV. Code Civ. Proc., § 425.17(e) — No Interlocutory Stay or Appeal**

25 Code Civ. Proc., § 425.17(e) provides that an order granting or denying a motion under Code Civ.
26 Proc., § 425.17 is not subject to an interlocutory appeal, stay, or writ to the extent it is based on a
27 Code Civ. Proc., § 425.17 exemption. Plaintiff incorporates by reference his lodged Interlocutory

1 Appeal Bar brief on Code Civ. Proc., § 904.1(a)(13) and related writ constraints.

2 **V. Code Civ. Proc., § 425.17(d) — No Carve-Out Available on This Record**

3 Code Civ. Proc., § 425.17(d) limits certain “public interest” carve-out arguments for particular
4 categories of defendants. On the facts Plaintiff has pleaded about commercial insurance claim
5 handling, defendants cannot reposition this dispute as a “media / internet / large nonprofit” Code
6 Civ. Proc., § 425.17(d) case to sidestep Code Civ. Proc., § 425.17(c).

7 **VI. Procedural Posture**

8 This lodging does not amend or expand the briefing record. Physical copies of all lodged materials
9 are provided herewith pursuant to Cal. Rules of Court, rule 3.1306(c). An accompanying RJN
10 seeks judicial notice of the operative statute and regulation texts.

11 **VII. Relief Requested**

12 Plaintiff requests that the Court (a) accept this Notice for the register, (b) consider the lodged
13 authorities at **each** hearing listed on the caption page, and (c) take judicial notice as requested in
14 the accompanying RJN.

Dated: April 30, 2026



/s/ Franciscus Dylan Rosario

FRANCISCUS DYLAN ROSARIO

Plaintiff, In Pro Per

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